

**BYLAWS OF THE
U.S. HIGHWAY 169 CORRIDOR COALITION
JOINT POWERS ASSOCIATION**

ARTICLE I. MEMBERSHIP

Draft, RML, 03/18/2013

Section 1. Voting Members

The Voting Members of this Coalition are the government units, including counties, cities, towns and regional development commissions, along the U.S. Highway 169 corridor. Government units meeting this description shall be granted voting membership upon passage of a resolution by the council/commission/board stating their intent to join in the Joint Powers Agreement creating the Coalition and upon payment of their annual membership dues, pursuant to the terms of the Joint Powers Agreement.

Section 2. Membership Categories

The U.S. Highway 169 Corridor Coalition (Coalition) has established separate membership categories for Ex-Officio and Affiliate members and may establish separate annual fees for each category.

Section 3. Additional Members

Additional members in any of the above membership categories of the Coalition may be added pursuant to the terms of the Joint Powers Agreement.

ARTICLE II. DEFINITIONS

Section 1. Bylaw Terms

For the purposes of these bylaws, the terms defined in this article have the meanings given them.

"Agreement" means the U.S. Highway 169 Corridor Coalition Joint Powers Agreement.

"Board" and "Board of Directors" means the governing body of the Coalition.

"Board Member" means a voting member of the Board of the Coalition.

"Coalition" means the U.S. Highway 169 Corridor Coalition created pursuant to the Joint Powers Agreement.

"Executive Committee" shall mean that committee consisting of the the officers of the Coalition.

"Board" and "Board of Directors" means the governing body of the Coalition.

"Party" means a government unit that is a voting member of the U.S. Highway 169 Corridor Coalition in accordance with the terms of the Joint Powers Agreement.

Section 2. Inclusion of Terms

All definitions included in Article II of the Joint Powers Agreement are incorporated herein.

ARTICLE III. THE BOARD

Section 1. Governing Body

The governing body of the Coalition is its Board of Directors. The U.S. Highway 169 Corridor Coalition Board of Directors shall consist of one (1) voting member from each Party. Each voting member is entitled to one (1) vote.

Section 2. Compensation

Board Members shall serve without compensation from the Coalition.

Section 3. Vacancy

A vacancy on the Board shall be filled by appointment for the unexpired portion of the voting member's term by the board or council of the voting member whose position on the Board is vacant.

ARTICLE IV. POWERS AND DUTIES OF THE BOARD

The powers and duties of the Board are those set forth in the Joint Powers Agreement.

ARTICLE V. OFFICERS

Section 1. Officers

The officers of the U.S. Highway 169 Corridor Coalition shall include a Chair, Vice-Chair, Treasurer and Secretary. The office of Chair shall be elected by Board Members of the Coalition and must be an elected official. The Board shall have the authority to establish other officer positions that it deems important to the operation of the coalition, but in no event shall the number of officers of the Coalition exceed seven (7). The remaining officers identified in the By-laws, as well as other officer positions created by the Board shall be elected by Board Members of the Coalition. ~~During the first year of existence, the Board Members may elect Co-Chairs of the Association.~~ The officers shall be elected at the annual meeting held each year. Officers shall serve for approximately one (1) year until successors are chosen. The officers so elected shall not serve more than three (3) successive terms.

Section 2. Chair

The Chair shall be the chief presiding officer of the Coalition and shall preside at all meetings of the Board and the Coalition. The Chair shall have primary responsibility for seeing that all orders and resolutions of the Board are carried into effect. The Chair shall be an ex-officio member of all committees and shall have the general powers and duties of supervision and management usually vested in the office of president.

Section 3. Vice-Chair

The Vice-Chair shall, in the absence or disability of the Chair, perform the duties and exercise the powers of the Chair and shall perform such other duties as the Board shall prescribe.

Section 4. Secretary

The Secretary shall attend all sessions of the Board and cause to be recorded all votes and the minutes of all proceedings in a minute book kept for that purpose and shall be the custodian of the records of all proceedings of the Coalition. Such written record shall routinely be filed with the Board Members. The Secretary shall give notice of all meetings of the Board and of committees, prepare meeting agendas, and shall perform such other duties as may be prescribed by the Board.

Section 5. Treasurer

The Treasurer shall have custody of the Coalition funds and securities and shall keep full and accurate account of receipts and disbursements in books belonging to the U.S. Highway 169 Corridor Coalition. The Treasurer shall be responsible for the accounting functions for the Coalition, except that, any audit, if deemed necessary shall be performed by an independent consultant. The Treasurer shall report to the Coalition membership regarding the Coalition's finances, including revenues and expenditures for the fiscal year, at the annual meeting and other times as requested by the Chair.

Section 6. Appointments

The Coalition may appoint such other officers as it deems necessary. All such officers shall be appointed from the voting membership of the Coalition.

ARTICLE VI. EXECUTIVE COMMITTEE

There shall be an EXECUTIVE COMMITTEE of the Coalition. The executive committee shall consist of the officers of the Coalition identified in Article V above, and as may be subsequently created by the Board. The executive committee shall oversee the day-to-day

operations of the Coalition, and shall make recommendations to the Board regarding, but not limited to the following; annual budget of the Coalition, Coalition work plan(s), membership fees, legislative activities.

ARTICLE VII. COMMITTEES

The U.S. Highway 169 Corridor Coalition may establish such committees as are deemed necessary for the proper conduct of the affairs of the organization. Committees may be established at any meeting. Such committees shall be selected in the manner determined by the Board and members need not be voting members or representatives of governmental units. The committees may meet from time to time upon their own motion and shall report any action taken by the committee to the Board of Directors.

ARTICLE VIII. MEETINGS OF THE BOARD

Section 1. Required Meetings

The Coalition shall call at least four (4) meetings per year, including an annual organizational meeting in January.

Section 2. Meeting Notice

Membership and board meetings of the U.S. Highway 169 Corridor Coalition shall be called by the Chair. Membership or board meetings shall be held only after reasonable written notice, preferably seven (7) days prior to each meeting, is sent by U.S. mail, electronic mail, or other available means of remote communication to each member as they appear on the records of the Secretary. An agenda describing the matters to be considered shall be sent along with the notice.

Section 3. Special Meetings

Special meetings of the Board may be called (a) by the Chair or (b) by the Board upon written request of the majority of the Board Members. Three (3) days' written notice of special meetings shall be given to the Board Members, unless shorter notice is required due to an emergency. Such notice shall include the agenda for the special meeting. Only matters set forth in the agenda shall be considered at a special meeting.

Section 4. Remote Participation

Any membership or board meeting may be conducted solely by one or more means of remote communication through which the members may participate in the meeting, if proper notice of the meeting is given and the proper number of members participating in the meeting is sufficient to constitute a quorum. Participation through remote communications constitutes presence at the meeting. If practicable, a member may participate in a membership or board meeting by means of telephone conference, or by other means of remote communication. Although not physically present, participation in a meeting by remote communication constitutes presence at the meeting.

Section 5. Quorum

A quorum of the Board shall be at least sixty (60%) of the voting members and no business may be conducted in the absence of a quorum

Section 6. Rules of Order

Unless otherwise specified in the Joint Powers Agreement, these bylaws, or by rules subsequently adopted, all meetings of the Board, membership, and other committees of the Coalition shall be conducted in accordance with *Roberts' Rules of Order Newly Revised*. The Chair may determine the order of business for Board meetings.

ARTICLE ~~VIII~~IX. ADMINISTRATION

Section 1. Employees/Consultants/Agents

The U.S. Highway 169 Corridor Coalition may retain such employees, consultants, and agents as it shall deem necessary, who shall be employed for such terms and at such compensation and shall exercise such powers and perform such duties as shall be determined from time to time by the Coalition.

Section 2. Contracts

The membership may authorize the Board of Directors to contract for legislative services to be provided to the Coalition. These services may include, but are not limited to research, direct lobbying, media communications and other services to assist the U.S. Highway 169 Corridor Coalition's legislative program.

ARTICLE ~~IX~~X. FINANCIAL CONTRIBUTIONS

Section 1. Initial Contribution

The U.S. Highway 169 Corridor Coalition shall request of voting and affiliate members an initial contribution towards the expenditure of funds necessary to support the accomplishment of its purposes.

Section 2. Annual Assessments/Dues

The Board may authorize and establish annual assessments for voting and affiliate members based criteria determined by the Board.

Section 3. Special Purpose Assessment/Fees

The Board may authorize and establish special purpose fees, dues or assessments for services provided to portions, but not necessarily all, of the membership. These special assessments, fees or dues shall be held and accounted for in a separate account.

Section 4. Notice

A proposal to institute or establish assessments, fees, or dues may be made at any meeting provided that such purpose is stated in the notice of the meeting and provided in writing, by mail, electronic communication, or other means, to all Board Members at least seven (7) days in advance of the meeting.

Section 3. Adoption

A two-thirds (2/3) vote of the member government units voting on the proposed assessments shall be necessary to adopt any proposed assessments, fees or dues.

ARTICLE X. OTHER FINANCIAL MATTERS

Section 1. Expenditures

All expenditure of funds shall be for activities a voting member has the power to expend funds for.

Section 2. Documents

Legal instruments and documents shall be executed with the authority of the Coalition, by the Chair and the Treasurer.

Section 3. Books and Records

A depository for Coalition funds shall be designated by the Board. All books and records shall be kept in accordance with normal and accepted accounting procedures and principles used by Minnesota statutory cities. Any member may be permitted to inspect and copy the Coalition's books and records at any and all reasonable times.

Section 4. Fiscal Year

The fiscal year of the Coalition shall be the calendar year.

Section 5. Annual Report

At the end of each calendar year, the Treasurer shall make an annual financial report and submit the same in writing to the Board at its next meeting. The Board shall submit said report, after its approval, to the board or council of each member.

Section 6. Dissolution Distribution

If the Coalition dissolves, all assets acquired by the Coalition remaining after the date of dissolution and after payment of any outstanding debts or expenses, shall be returned to those contributing members in good standing on the date of dissolution in proportion to the respective contributions made by said members.

ARTICLE ~~XI~~. AMENDMENTS TO BYLAWS

Section 1. Proposal

The Board may propose amendments to this Agreement by a vote of two-thirds (2/3) of the number of voting members at any meeting of the Board, provided that such purpose is stated in the notice of the meeting and the proposed amendment(s) is provided in writing, by mail, electronic communication, or other means, to all Board Members at least seven (7) days in advance of the meeting.

Section 2. Adoption

A two-thirds (2/3) vote of the member government units voting on the proposed amendment(s) shall be necessary to adopt any proposed amendment to these bylaws.

ARTICLE ~~XI~~. CONFLICT

In any instance where these bylaws are in conflict with the Joint Powers Agreement, such Agreement shall control.

ARTICLE XII. EFFECTIVE DATE

These bylaws are effective upon their adoption by the Board.

U.S. HIGHWAY 169
CORRIDOR COALITION

By: _____

Chair

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By: _____

Secretary

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